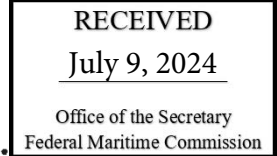




**Small Claim Form for Informal Adjudication and
Information Checklist**

Federal Maritime Commission, Washington, DC.



Informal Docket No. 2013(I)

Webtrans Logistics, Inc.

(Claimant)

vs.

Hapag-Lloyd (America) LLC.

(Respondent)

The claimant, Webtrans Logistics, Inc., is a NVOCC incorporated in 2760 East El Presido St., Carson, California 90810.

The respondent named above, Hapag-Lloyd (America) LLC., is a VCO doing business in 555 East Ocean Blvd Suite 300, Long Beach, California 90802.

- A. On July 12th, 2021, the Claimant (Webtrans) received an ocean export booking confirmation from Hapag for 9 x 20' containers on vessel: Seaspan Thames v. 022W with ETD of August 4th, 2021 out of port of Vancouver.
- B. All containers were delivered to the port prior to the cut off date and we received Draft bill of lading from Hapag on the intended vessel (Seaspan Thames v. 022w).
- C. On August 3rd, 2021, Hapag's customer service team sent us an email, simply asking if the cargo was hazardous material. We replied on the same day and informed that it was a non-haz cargo.
- D. There was no other message from Hapag until August 17th, 2021 when they asked for MSDS, and we submitted it on the same day it was requested. MSDS clearly indicated the cargo was indeed non-hazardous.
- E. The intended vessel had already sailed on August 5th, 2021 and we assumed our cargo was shipped on that vessel since there was still no other message from Hapag concerning our shipment.
- F. We only found out on August 23rd, 2021, after calling Hapag's customer service, that our containers were rolled to the next vessel due to "hazmat hold".
- G. Hapag billed us "port charge", "lift on/off", and "storage" (demurrage) in amount of USD 18,310.50 for containers missing the intended vessel and overstaying in the port.

Hapag now handed over the invoice to the collection agency and charge has now increased to total USD 22,705.02.

- H. Hapag never notified us of the hazmat hold or of our booking being rolled to the next vessel. The intended vessel had already departed on August 5th, 2021 but Hapag still had no mention of the incident when they sent us a message on Aug 17th, 2021, requesting for MSDS.

We, the claimant, sent numerous emails to the Respondent, requesting to cancel the invoice but the Respondent showed no interest in further discussion.

Had we been informed in timely manner (before vessel departure on Aug 5th), we would have been able to either resolve hazmat hold by simply submitting the MSDS, or to send trucks to remove our containers from the port to avoid extra charges.

Under 46 USC Ch. 411 – title 36 section 41102, a common carrier has responsibility to “establish, observe, and enforce just and reasonable regulations and practices relating to or connected with receiving, handling, storing, or delivering property.”

46 USC Ch. 411: PROHIBITIONS AND PENALTIES

From Title 46—SHIPPING

Subtitle IV—Regulation of Ocean Shipping

Part A—Ocean Shipping

§41102. General prohibitions

(c) Practices in Handling Property.—A common carrier, marine terminal operator, or ocean transportation intermediary may not fail to establish, observe, and enforce just and reasonable regulations and practices relating to or connected with receiving, handling, storing, or delivering property.

By failing to provide any information regarding my shipment being held at the port and missing the vessel, Hapag kept us blinded and prevented us of any chance to avoid the charges incurred and therefore Hapag should be liable for the damages. However, instead of admitting their service failure, Hapag invoiced all the charges to us.

We are requesting for Hapag to cancel/waive the entire invoice amount of USD 18,310.50 and contact their collection agency (MetroGroup of New York) to stop all actions against Webtrans Logistics to collect the principal (\$18,310.50) and their fees (\$4,394.52).

Hapag invoice number: 2120012638

Hapag BL number: 60735634

Collection Agency's file number: 5601-6279

The undersigned authorizes the Settlement Officer to determine the above-stated claim pursuant to the informal procedure outlined in subpart S (46 CFR 502.301-502.305) of the Commission's informal procedure for adjudication of small claims subject to discretionary Commission review.

(Date) July 1st, 2024

(Claimant's signature) Michael Shin

(Claimant's address) 2760 East El Presidio St. Carson, CA 90810

(Signature of agent or attorney) _____

(Agent's or attorney's address) _____

VERIFICATION

State of California, County of Los Angeles, ss: _____,

being first duly sworn on oath deposes and says that he or she is

The claimant Michael Shin, the Ocean Export manager at Webtrans Logistics inc. and is the person who signed the foregoing claim, that he or she has read the foregoing and that the facts set forth without qualification are true and that the facts stated therein upon information received from others, affiant believes to be true.

Subscribed and sworn to before me, a notary public in and for the State of _____, County of _____, this _____ day of _____, 20____. (Seal)

(Notary Public)

My Commission expires, _____

SEE LOOSE
CERTIFICATE
ATTACHED

SEE LOOSE
CERTIFICATE
ATTACHED

CALIFORNIA JURAT WITH AFFIANT STATEMENT**GOVERNMENT CODE § 8202**

- ☐ See Attached Document (Notary to cross out lines 1–6 below)
☐ See Statement Below (Lines 1–6 to be completed only by document signer[s], *not* Notary)

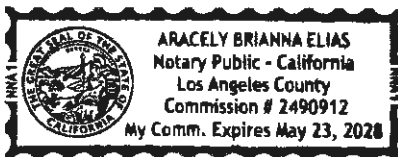
1 _____
2 _____
3 _____
4 _____
5 _____
6 _____
Signature of Document Signer No. 1 Signature of Document Signer No. 2 (if any)

A notary public or other officer completing this certificate verifies only the identity of the individual who signed the document to which this certificate is attached, and not the truthfulness, accuracy, or validity of that document.

State of California

County of Los Angeles

Subscribed and sworn to (or affirmed) before me

on this 08 day of July, 2024
by Date Month Year(1) Michael Shin(and (2) _____),
Name(s) of Signer(s)proved to me on the basis of satisfactory evidence
to be the person(s) who appeared before me.Signature Aracely
Signature of Notary Public

Seal
Place Notary Seal Above

OPTIONAL

Though this section is optional, completing this information can deter alteration of the document or
fraudulent reattachment of this form to an unintended document.

Description of Attached Document

Title or Type of Document: _____ Document Date: _____

Number of Pages: _____ Signer(s) Other Than Named Above: _____